

26TRCV00883 26TRCV00883

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-12

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Case Number: 26TRCV00883 Hearing Date: August 12, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

LEO

JAVIER, an individual

Plaintiff,

Case No.:

26TRCV00883

vs.

[Tentative]

Granted

DOLLAR

TREES, INC., a Virginia corporation; RAY FOX, an individual; and DOES 1-100,
inclusive

Defendants.

Hearing

Date: August
12, 2026

Moving Parties: Defendant Dollar Tree

Responding

Party: Plaintiff Leo Javier

HEARING: Motion to Compel

Arbitration

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel

Arbitration.

BACKGROUND

On March 10, 2026, Plaintiff Leo

Javier filed the Complaint against Defendants Dollar Tree Stores Inc and Ray Fox alleging causes of action for failure to pay overtime wages, failure to pay minimum wage, failure to provide meal periods, failure to provide rest breaks, failure to pay wages upon termination, failure to issue accurate and itemized wage statements, and unfair business practices.

On May 5, 2026, Defendant filed the
Motion to Compel Arbitration.

On July 30, 2026, Plaintiff filed
the Opposition.

On August 5, 2026, Defendant filed
the Reply.

LEGAL STANDARD

The Federal Arbitration Act (the "FAA")

applies in both federal and state courts to contracts evidencing a transaction involving interstate commerce. (9 U.S.C. §§ 1-2; *Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (*Preston v. Ferrer* (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a "contract evidencing a transaction involving commerce." (*Woolls v. Super. Ct.* (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2,

"[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

DISCUSSION

The instant motion

is based on an arbitration agreement found in Plaintiff's 2014 onboarding process and an updated October 2020 agreement.

Existence of Valid Arbitration Agreement and
Claims Covered by Arbitration Clause

"[T]he petitioner

bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence..." (*Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (*Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353.) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause." (*Titolo v. Cano* (2007) 157

Cal.App.4th 310, 316.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Ass’n v. State (2006) 142 Cal.App.4th 198, 205.)

“[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Giuliano, supra, 149 Cal.App.4th at p. 1284.)

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) However, the burden is a three-step framework. “First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (Ibid.) “For this step, it is not necessary to follow the normal procedures of document authentication.” (Ibid.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Ibid.) “The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

Last, “if the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.)

Plaintiff argues that Defendant cannot compel arbitration because the parties never formed a valid agreement to arbitrate. Plaintiff maintains that Defendant has not met its initial burden, and that even if it had, his declaration that he never saw and does not remember signing the agreement shifts the burden back to Defendant to establish a valid agreement with admissible evidence.

Plaintiff argues that Defendant must satisfy basic contract formation principles and authenticate the agreement before its contents may be received in evidence, and that there is a critical gap in the evidence because Defendant has not established that any agreement to arbitrate exists. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 841-845, 848.) Plaintiff contends that the declarations of Ashley Carter and Jonathan Cobb are conclusory and lack personal knowledge, describing only what Plaintiff was required to do and the step-by-step onboarding process, without stating that either declarant was present for the execution of the agreement. Plaintiff argues that a witness may not testify absent personal knowledge, which requires the capacity to perceive and to recall, and that a bare statement of personal knowledge unsupported by facts should be ignored.

Plaintiff further argues that Defendant has not shown that his signature is valid because Defendant presented no document signed by Plaintiff and the signature was purportedly affixed electronically. Plaintiff contends that an electronic signature may be attributed to a person only if it was the act of that person, and that where a party denies or does not recall signing, the proponent must prove authenticity by a preponderance of the evidence. Plaintiff argues that Defendant never explains how the digital signature of LEO S JAVIER was placed on Exhibit A or how it was an act attributable only to Plaintiff.

In reply, Defendant argues that Plaintiff conceded the delegation clauses in both Arbitration Agreements are enforceable by failing to address that both agreements delegate to the arbitrator exclusive authority over any dispute as to their

interpretation, validity, applicability, unconscionability, or enforceability.

Defendant contends that where the parties clearly and unmistakably delegate gateway issues to the arbitrator, a court has no power to consider them, that California enforces such provisions, and that unless Plaintiff challenged the delegation provision specifically, it must be treated as valid and enforced, leaving any challenge to the agreement as a whole for the arbitrator. (Henry Schein, Inc. v. Archer & White Sales, Inc. (2019) 586 U.S. 63, 68.)

Defendant therefore argues the Court should grant the motion and leave the validity and unconscionability questions to the arbitrator.

Defendant further

argues that Plaintiff agreed to both agreements. As to the 2020 Agreement, Defendant contends Plaintiff's failure to address it concedes that it is valid, enforceable, and covers his claims. Defendant also argues that its October 23, 2020 mailing of the agreement creates a presumption of receipt that holds absent believable contrary evidence, and that unlike a plaintiff who at least denied receipt, Plaintiff offers no testimony about the mailer at all, nor any evidence to counter Defendant's notice through his wage statements, posted store notice, and his continued employment through February 10, 2025.

Defendant contends

that it need only prove agreement formation by a preponderance of the evidence, and that it did so as to the 2014 Agreement with a copy electronically signed by Plaintiff. (Rosenthal v. Great W. Fin. Sec. Corp. (1996) 14 Cal.4th 394, 413.) Defendant contends that Ms. Carter need not have witnessed the signing because a corporate affiant may testify from business records to acts she did not observe, and that her testimony and the Votta declaration establish an onboarding process requiring associates to review the full agreement and re-enter a confidential password to affix a dated digital signature saved to a secure vendor database. Last, Defendant contends that the burden of authenticating an electronic signature is not great and that a unique, secure username and password may suffice. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 844.)

Here, Defendant has

provided signed copies of both the 2014 and 2020 agreements, which both included an arbitration agreement. (Carter Decl. Exhibits A and B.) Thus, the Court finds that Defendant has passed its initial burden. In response, Plaintiff has provided his own declaration stating that he does not remember signing the 2014 agreement. (Javier Decl. ¶¶ 2-3.) However, Plaintiff has not

provided any evidence disputing the 2020 agreement. Thus, the Court finds that Plaintiff has not met his burden and Defendant has shown the existence of a valid arbitration agreement.

Furthermore, the 2020 agreement includes the language, "The arbitrator shall have the exclusive authority to resolve any disputes or claims regarding arbitrability or the formation, interpretation, validity, applicability, unconscionability, or enforceability of this Agreement." (Carter Decl. Exhibit B.) While this provision does not stop the Court from analyzing the existence of the claimed agreement, it does prohibit the Court from analyzing Plaintiff's other arguments, including unconscionability. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242.)

Therefore, the Court grants the Motion to Compel Arbitration.